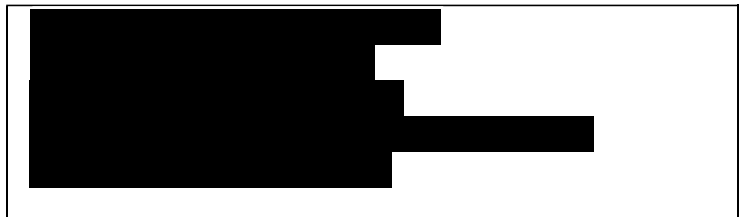


JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY (JEFO)
STRYKER CORPORATION
CONTRACT SPE2D1-20-D-0011

- (1) Defense Logistics Agency (DLA) Troop Support, Medical Supply Chain, Capital Equipment Division, is the contracting activity.
- (2) This sole source justification is for the purchase of a full-service contract to provide maintenance support for integrated operating room equipment.
- (3) The action submitted for approval is a JEFO for the acquisition of an annual full-service contract to provide maintenance support for one (1) year for Stryker Operating Room (OR) Integration Systems and Endoscopy Systems at Naval Medical Center (NMC) San Diego from Stryker Corporation (Stryker) under its Patient Monitoring and Capital Equipment (PMCE) Contract SPE2D1-20-D-0011. The base period of the contract expires on July 16, 2025. There is a five (5) year option period which is currently being worked, which will extend the contract through July 16, 2030. The total estimated dollar value of this requirement is [REDACTED]
- (4) The authority waiving the fair opportunity requirements is FAR16.505(b)(2)(i)(B), only one (1) source is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. The use of this authority is necessary since the United States (US) Navy at NMC San Diego requires a full-service contract to provide maintenance support for their Stryker OR Integration Systems and Endoscopy Systems. This requirement is essential and critical to the continuing functionality of Stryker OR Integration Systems and Endoscopy Systems at NMC San Diego. Continued authorized maintenance is also necessary to maintain a high quality of care and to preserve patient safety.

Stryker is the only authorized source for the maintenance services on Stryker OR Integration Systems and Endoscopy Systems because it is the original equipment manufacturer (OEM) for Stryker products, and it does not provide replacement parts for its products to any third-party service organizations.

Stryker has the sole proprietary license for the operating software on Stryker OR Integration Systems and Endoscopy Systems. The annual full-service contract provided by Stryker consists of software updates along with equipment repair. Repairs of the Stryker OR Integration Systems and Endoscopy Systems often require interaction with Stryker's proprietary operating software, which must be done by an entity with a license for it. No other entity is authorized to perform service on the Stryker OR Integration Systems and



[REDACTED]

Endoscopy Systems other than Stryker. Having a third-party vendor service the Stryker devices may void warranty and further technical support by the OEM.

Market research performed by the DLA Troop Support Biomedical Engineer in March 2025 confirmed that Stryker possesses the [REDACTED] ability to provide the required maintenance services for Stryker OR Integration Systems and Endoscopy Systems and [REDACTED]

[REDACTED]

- (5) The required full-service contract is available on Stryker's PMCE Contract SPE2D1-20-D-0011. The contract pricing has previously been determined fair and reasonable [REDACTED]

The contracting officer has determined, based on a review of the above, that the anticipated cost to the Government will be fair and reasonable.

- (6) There are no other facts supporting the use of this JEFO.
- (7) In an effort to overcome barriers to fair opportunity for subsequent acquisitions, DLA Troop Support will continue to allow PMCE vendors to have the opportunity to add products that fall within the scope of the PMCE solicitation at any time, thereby increasing competition within the program. However, currently there are no other known PMCE vendors with a full-service contract to provide maintenance support for existing Stryker OR Integration Systems and Endoscopy Systems.
- (8) As the Contracting Officer, I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief.

Date

[REDACTED]

ANTHONY GIUNTA
Contracting Officer, FSD

[REDACTED]

[Redacted]

I hereby certify that the requirements, which form the basis of this justification, are accurate, that these supplies and services meet the Government's minimum needs, and that this justification is accurate and complete to the best of my knowledge and belief.

Date

[Redacted]

Biomedical Engineer, FSDC

I have reviewed and hereby approve this justification.

Date

OKULICZ
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Date: 2025.04.28 07:50:39 -04'00'

MACIEJ OKULICZ-KOZARYN
DLA Troop Support Competition Advocate

[Redacted]